

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-20

INTERNATIONAL EXPRESS TRUCKING, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT.

**RESPONDENT’S OPPOSITION TO COMPLAINANT’S
MOTION FOR DISMISSAL WITHOUT PREJUDICE**

Respondent COSCO Shipping Lines Co. LTD (“COSCO” or “Respondent”), through counsel, hereby submits its Opposition to Complainant International Express Trucking, Inc. (“Complainant” or “IXT”) August 11, 2025 Motion for Order of Dismissal Without Prejudice Pursuant to 46 C.F.R. § 502.72(a)(3). Respondent supports IXT’s request for dismissal but opposes the request that it be granted without prejudice. For the following reasons, Respondent respectfully requests that the Presiding Officer dismiss this matter with prejudice or not dismiss it at all.

Complainant does not explain why it wants a dismissal without prejudice, but its insistence on this point suggests that it has in mind re-filing the Complaint at the FMC, perhaps with additional claims and higher demands for reparations. If not, there is no reason for Complainant to seek dismissal *without prejudice*. Dismissing the matter without prejudice would substantially prejudice Respondent. Respondent has already spent tens of thousands of dollars in defending the Complaint, which would have to be duplicated if IXT were permitted to bring a new complaint before the FMC.

IXT argues speciously that the Commission’s Rules create a preference for dismissals

without prejudice. This is simply wrong. The Commission's Rule, found at 46 C.F.R. § 502.72(a)(3), states that, once an Answer has been filed, "an action may be dismissed at the complainant's request only by order of the presiding officer, *on terms the presiding officer considers proper*." (Emphasis added). Although that section goes on to say: "Unless the order states otherwise, a dismissal under this paragraph is without prejudice," *id.*, this simply informs as to how an order that is silent on prejudice should be interpreted. It does not put a thumb on the scale in favor of without prejudice, but rather leaves that to the ALJ's decision regarding what is "proper" under the circumstances.

Particularly salient here is the case of *Container Distribution, Inc. v. Neptune Orient Lines, Ltd.*, another FMC matter in which the complainant requested a dismissal without prejudice, which the respondent opposed. FMC Dkt. No. 86-18, 1986 WL 181452 (October 9, 1986). The Presiding Officer concluded "that the complaint should be dismissed with prejudice based on the reasoning offered by the respondent," which included respondent's "considerable effort and expense defending this case, including attorney's fees."¹ *Id. Compare with Maritima Aragua S.A. v. Worldwide Uniexpress Inc.*, FMC Dkt. No. 91-04, 1991 WL 328882 (October 23, 1991), where the Presiding Officer found good cause to dismiss the complainant's case without prejudice in a situation where the respondent could not be located after the complaint was filed.

Here for the reasons stated above, the proper term is with prejudice. If Respondent is going to be required to litigate this matter, as the request for dismissal without prejudice suggests, it would much prefer to carry on in the extant proceeding, rather than having to incur the same costs all over again. The only circumstances under which Respondent would agree to a dismissal without prejudice would be if the order of dismissal were conditioned on Complainant reimbursing Respondent for the costs already expended on this matter by Respondent.

¹ Respondent also notes that Dismissal (with or without prejudice) would impact COSCO by rendering Respondent ineligible for award of attorney's fees as prevailing party per the Shipping Act.

For the foregoing reasons, Respondent COSCO respectfully requests that the Presiding Officer deny Complainant's Motion for Dismissal Without Prejudice and dismiss the above-captioned case with prejudice.

Dated: August 14, 2025

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Rebecca Fenneman", with a stylized flourish at the end.

Rebecca A. Fenneman
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**ATTORNEYS FOR COSCO SHIPPING
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CERTIFICATE OF SERVICE

I certify that on the 14th day of August, 2025, a true and correct copy of the foregoing document, **Respondent's Opposition to Complainant's Motion for Dismissal**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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